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Case Number: 24STCV07443 Hearing Date: July 14, 2026 Dept: 413

TENTATIVE RULING

HEARING DATE: 07/14/2026

CASE NUMBER: 24STCV07443

CASE NAME: BRANDON HENDERSON vs LOS FELIZ FORD, INC., et al.

MOVING PARTY: Mtn. to Tax – Defendant Ford Motor Service Co.

Mtn. for Attorney's Fees – Plaintiff Brandon Henderson

OPPOSING PARTY: Mtn. to Tax – Brandon Henderson

Mtn. for Attorney's Fees – Defendant Ford Motor Service Co.

PROCEEDING: Motion for Attorney's Fees; Motion to Tax

RULING SUMMARY: Plaintiff Brandon Henderson's Motion for Attorneys' Fees is granted. Defendant Ford Motor Co. to provide a proposed order within 15 days adhering to the Court's calculations in this Ruling After Hearing.

Defendant Ford Motor Service Co.'s Motion to Tax is denied. Plaintiff Brandon Henderson is awarded costs in the amount of $4,590.53.

BackgrounD

On March 25, 2024, Plaintiff Brandon Henderson filed a Complaint against Defendants Los Feliz Ford, Inc. (“LFF”); Capital One, National Association (“Capital One”); Contractors Bonding and Insurance Company (“CBIC”); and Ford Motor Services Company (“Ford” and, collectively, “Defendants”), pleading seven causes of action for: (1) Violation of the Consumers Legal Remedies Act, Civ. Code § 1750, et seq. against LFF, Capital One, and Ford; (2) Intentional Misrepresentation against LFF, Capital One, and Ford; (3) Concealment against LFF, Capital One, and Ford; (4) Negligent Misrepresentation as to LFF, Capital One, and Ford; (5) Violation of the Magnuson-Moss Warranty Act against Ford; (6) Violations of the Unfair Competition Law, Business & Professions Code § 17200, et seq. against LFF, Capital One, and Ford; and (7) Cause of Action Under Veh. Code § 11711 against CBIC.

Plaintiff alleges that he purchased a 2015 Subaru Forester with vehicle identification number VIN JF2SJAHCXFH551770 (the “Subject Vehicle”) with an extended warranty, the Subject Vehicle started showing signs of defects, and Ford refused to authorize repairs for the Subject Vehicle despite the extended warranty.

On May 20, 2024, LFF filed its Answer. On May 23, 2024, CBIC filed its Answer. On May 24, 2024, Ford filed its Answer.

On June 7, 2024, Capital One filed its Answer and a Cross-Complaint against Cross-Defendant LFF, alleging two causes of action for: (1) Breach of Contract, and (2) Contractual Indemnification. On September 24, 2024, Plaintiff dismissed Capital One without prejudice.

On June 2, 2025, Plaintiff filed a Motion for Leave to File First Amended Complaint (“FAC”), which was granted. On June 7, 2025, Plaintiff filed a FAC, alleging the same causes of action against the same parties. The FAC names Capital One as the holder despite Capital One’s dismissal in 2024. (See FAC at ¶ 3 and at all causes of action naming “Holder”.)

On July 18, 2025, Plaintiff filed a Notice of Settlement of the Entire Case.

On August 06, 2025, LFF and Ford filed

their respective Answers.

On January 07, 2026, the Court filed a dismissal of the entire action and retained jurisdiction to enforce the settlement pursuant to Code of Civil Procedure section 664.6.

On January 20, 2026, Plaintiff filed his Motion for Attorneys' Fees. Ford filed its Motion to Tax Costs on February 03, 2026.

On April 1, 2026, Ford filed its Opposition to the Motion for Attorneys' Fees.

Plaintiff's Opposition to the Motion to Tax Costs was filed on April 02, 2026.

On July 7, 2026, Plaintiff filed his Reply in support of the Motion for Attorneys' Fees.

Defendant filed no Reply in support of the Motion to Tax Costs.

LEGAL STANDARD

A.
Attorneys' Fees

A prevailing party in entitled to recover costs, including attorneys' fees. (Code Civ. Proc., §§ 032(a)(4), 1032(b), 1033.5.)¿¿

In Song-Beverly actions, if the buyer of a consumer good who is damaged by a failure to comply with the Song-Beverly Act prevails in an action under that statute, the buyer may recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, as determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code § 1794(d).)

The fee setting inquiry in California

ordinarily begins with the “lodestar” method, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. A computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49.)¿ Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, n.23.) After the trial court has performed the lodestar calculations, it shall consider whether the total award so calculated under all of the circumstances of the case is more than a reasonable amount and, if so, shall reduce the section 1717 award so that it is a reasonable figure.¿ (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095-96.)¿¿

The factors considered in determining
the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774.) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.) "In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citation], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases. [Citation.]" (569 East County Boulevard, LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.)

B.
Taxing Costs

A “prevailing party” is entitled as a matter of right to recover costs for suit in any action or proceeding. (Code Civ. Proc. § 1032(b); Santisas v. Goodin (1998) 17 Cal.4th 599, 606; Scott Co. v. Blount, Inc. (1999) 20 Cal.4th 1103, 1108.) Assuming the “prevailing party” requirements are met, the trial court has no discretion to order each party to bear his or her own costs of suit. (Michell v. Olick (1996) 49 Cal.App.4th 1194, 1198; Nelson v. Anderson (1999) 72 Cal.App.4th 111, 129.) The term “prevailing party” for costs purposes is defined by statute to include:

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The party with a net monetary recovery;

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A defendant who is dismissed from the action;

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A defendant where neither plaintiff nor defendant recovers anything; and

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A defendant as against those plaintiffs who do not recover any relief against that defendant.

(Code Civ. Proc. § 1032(a)(4).)

If the party does not fall within one of these four express categories, the court may exercise its discretion to award or deny costs. (See Lincoln v. Schurgin (1995) 39 Cal.App.4th 100, 105.)

A defendant (including a cross-defendant) who is dismissed from the action is the “prevailing party.” (Code Civ. Proc. §§ 1032(a)(2) and (a)(4).) This is so whether the dismissal is voluntary or involuntary. (Santisas, supra, 17 Cal.4th at p. 606; see also Crib Retaining Walls v. NBS/Lowry (1996) 47 C.A.4th 886, 889 [cross-defendant was entitled to recover costs from cross-complainant following dismissal of cross-complaint, even though dismissal resulted from good faith settlement between cross-defendant and plaintiff]; Cano v. Glover (2006) 143 Cal.4th 326, 331 [defendant in action that was dismissed without prejudice was entitled to costs under Code Civ. Proc. § 1032(a)(4)]; 66 A.L.R.3d 1087 [dismissal of plaintiff's action as entitling defendant to recover attorneys' fees or costs as “prevailing party” or “successful party”].

“A verified memorandum of costs is prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary. (Bender v. County of Los Angeles (2013) 217 Cal.App.4th 968, 989.) “A party’s mere statements in the points and authorities accompanying its notice of motion to strike cost bill and the declaration of counsel are insufficient to rebut the prima facie showing that the costs were necessarily incurred.” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266.) “

The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. (Cf. Ladas v. California State Auto. Assn., supra, 19 Cal. App. 4th at pp. 774-776.) If so, the burden is on the objecting party to show them to be unnecessary or unreasonable. (Decoto School Dist. v. M. & S. Title Co. (1964) 225 Cal. App. 2d 310, 317 [37 Cal. Rptr. 225].)” Nelson, supra, 72 Cal.App.4th 111, 131.)

The losing party may dispute any or all of the items in the prevailing party’s memorandum of costs by a motion to strike or tax costs. (Cal. Rules of Court, Rule 3.1700(b).) "Technically, a motion to strike challenges the entire costs bill (e.g., on the ground the claimant is not the 'prevailing party'), whereas a motion to tax challenges particular items or amounts. But the terms are often used interchangeably and there is no difference in the procedural rules." (See Wegner, Fairbank, Epstein & Chernow, Cal. Prac. Guide: Civil Trial & Evidence (The J Rutter Group 2018), § 17:137.)

Cal. Rules of Court Rule 3.1700 provides: “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of mailing of the notice of entry of judgment or dismissal by the clerk under Cal. Code Civ. Proc. § 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of the cost are correct and were necessarily incurred in the case."

Objections

A.
Objections to the Declaration of
Christopher P. Barry

Objection No. 40 [Page 10, line 14 – Page 12, line 1, ¶11] is sustained. The remainder are overruled.

B.
Objections to the Declaration of
Haley L. Savage

All objections to the Declaration of Haley L. Savage are overruled.

C.
Objections to the Declaration of
Gregory T. Babet

All objections to the Declaration of Gregory T. Babet are overruled.

DISCUSSION

A.
Motion for Attorney's Fees

Plaintiff seeks attorneys in the amount of 57,474.50; Plaintiff requests no lodestar enhancement multiplier. Plaintiff argues that (1) counsels' hourly rates, which range from $195 to $750, are presumed reasonable; (2) counsels' billing rates are reasonable as the rates have been approved by numerous California courts and arbitrators; and (3) and counsel charged competitive market rates. Plaintiff bases the right to attorneys' fees stem on the settlement agreement in which Plaintiff is considered a prevailing party.

The rates of Plaintiff's attorneys are

as follows:

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Christopher P. Barry (partner with approx. 31 yrs. experience) – $750.00/hour;

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Gregory T. Babbit (partner with approx. 28 yrs. experience) – $670.00/hour;

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Carley Roman (associate with approx. 7 yrs. experience) – $370.00/hour;

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Kaylin Masis (associate with approx. 7 yrs. experience) – $360.00/hour;

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Haley Savage (attorney with approx. 2 yrs. experience) – $300.00/hour;

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Brandon Rodriguez (legal extern from January through April 2021) – $205.00/hour; and

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Laura Turner (paralegal) – $195.00/hour.

(Decls. of Christopher Barry, Gregory T. Babbit, and Haley Savage.)

In its Opposition to the Motion for Attorneys' Fees, Ford argues that the Court has broad discretion to reduce claimed fees, that Plaintiff has not justified their fees as there are no billing dates and no descriptions of the work performed by counsel; that $750.00 is excessive; that templated discovery was used; that duplicative and unnecessary fees should not be awarded; that administrative tasks should not be included; and that Plaintiff is not entitled to an enhancement multiplier. Ford requests that the Court use a $350/hour blended rate and consider applying a negative multiplier.

In Reply, Plaintiff argues that he should be awarded his attorneys' fees due to the results achieved, that Plaintiff complied with California law in submitting his attorneys' fees, that declarations from counsel are admissible evidence on a fee motion, that the evidence supports the attorneys' billing rates, that there is no evidence of duplicative or unnecessary fees, and that Plaintiff did not request a positive lodestar enhancement multiplier.

The correct measure for attorneys' fees is the market value of the services, and "[t]his standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel." (Nemecek & Cole v. Horn (2012) 208 Cal.App.4th 641, 651.) "Absent an arbitrary ruling, case law gives trial judges great discretion in using their knowledge and experience to assess the ' " 'value of professional services rendered in his [or her] court,' " ' even without the necessity of expert testimony. [Citations.]" (Marshall v. Webster (2020) 54 Cal.App.5th 275, 287 [internal citations omitted]; see also Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 ["The ' "experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong." '
"].)

The Court has reviewed the evidence provided by both parties and the case file. The Court is also aware of the prolific use of templates in Song-Beverly cases.

However, this is not a standard lemon law case. This action was directly tied with the extended warranty alleged and not solely defects of the Subject Vehicle. Therefore, the Court declines to reduce the hours billed by Plaintiff's counsel.

The Court lowers Carley Roman's rate from $370.00 to $360.00. As presented, Carley Roman and Kaylin Masis both graduated law school in 2019 and were in the same position at Auto Fraud Legal Center LLP. As the experience of both attorneys are substantially similar, the increased rate of one of them is not justified.

Regarding the partners in this action, the Court first addresses Christopher P. Barry ("Barry"). The highest rate shown for Barry is $715/hour for a case in 2025 (Barry Decl. ¶ 7(a)-(c)), and $715/hour for arbitration of a case in 2026 (see id. ¶ 8(i)). While Barry states that it is practice to increase hourly rates each year (id. ¶ 10), the Court does not find grounds to increase the rate beyond $715 here. Therefore, Barry's rate is lowered from $750.00/hour to $715.00/hour. Regarding Gregory T. Babbit ("Babbit"), the highest rate shown is $635 in both 2025 and 2026. (Barry Decl. ¶¶ 7(b)-(g); 8.) The Court does not find grounds to increase Babbit's rate beyond $635 here. Babbit's rate is lowered from $670.00/hour to $635.00/hour.

Accordingly, the Motion for Attorney Fees is granted. Ford is ordered to submit a proposed order within _____ days reflecting the Court's modifications to hourly rates in this Ruling.

B.
Motion to Tax

Ford contests the filing and motion fees ($555.00), service of process fees ($187.90), fees for electronic filing or service ($159.95), postage ($75.75), photocopies ($94.20), vehicle storage ($900.00), mediation ($1,1880.00), vehicle transport storage ($525.00), DMV title history ($85.00), subpoena to International Organization for Standardization ("ISO") ($85.73), and ISO document production ($85.73). Ford challenges the costs allowable under Code of Civil Procedure section 1033.5, on the ground that no invoices or documentation have been provided to support them.

Plaintiff has provided evidence of costs in a filed Compendium of Exhibits.

The Court has reviewed the evidence provided. Regarding postage and photocopying, Plaintiff's counsel Barry states that his firm's copy machine and postal meter allow staff to insert a case number and the amount for each can be charged by case. Barry concedes that these costs are discretionary, providing a citation to Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137 in which the court distinguished "costs" in Song-Beverly cases from "costs" in Code of Civil Procedure section 1033.5.

Ford filed no Reply and,
therefore, did not contest the evidence provided by Plaintiff in its Opposition to the motion to tax.

Accordingly, Ford's Motion to Tax
is denied.

Conclusion¿

Plaintiff Brandon Henderson's
Motion for Attorneys' Fees is granted. Defendant Ford Motor Co. ordered to submit a proposed order within 15 days adhering to the Court's rulings on hourly rates.

Defendant Ford Motor Service Co.'s
Motion to Tax is denied. Plaintiff Brandon Henderson is awarded costs in the amount of $4,590.53.

Date: 07/14/2026 _______________________________¿

William E. Weinberger

Judge, Los Angeles Superior Court